

CHARTER-SMITH, et al. v MALLERY

24CV47281

**PLAINTIFF'S MOTION TO COMPEL DEPOSITION AND REQUEST MONETARY
SANCTIONS**

Plaintiffs Alison Charter-Smith and Anthony Jaehnichen ("Plaintiffs") filed their Complaint arising out of alleged wrongful foreclosure. Now before the Court is Plaintiff's Motion to Compel the Deposition of Ronda Copeland and Request for Monetary Sanctions.

The motions do not comply with Local Rule 3.3.7. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3.3.7 Tentative Rulings (Repealed Eff 7/1/06, As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3.3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court [emphasis in original.]

Based on the failure to include this language, the Motion is DENIED, without prejudice to properly refile.

The Clerk shall provide notice of this Ruling to the parties forthwith. No further formal Order is required.

ANGELS GUN CLUB, INC. v TRYON, et al.

24CV47497

DEFENDANTS' MOTION FOR JUDGMENT ON THE PLEADINGS

This matter involves a lengthy land dispute between Plaintiff Angels Gun Club, Inc ("Gun Club") and Defendants Thomas M. Tryon, individually and as trustee of the Thomas M. Tryon and Denise E. Tryon Family Trust UDT dated October 12, 2000 ("Trust"), Denise E. Tryon as trustee of the Trust, John C. Tryon, individually and as trustee of the 1991 Tryon Trust and Elizabeth Pease Tryon, trustee of the 1991 Tryon Trust and Mary E. Tryon (collectively, "Defendants").

I. Factual and Procedural Background

The instant matter is just one of several lawsuits that have taken place between the Gun Club and Defendants. In the current case, Gun Club seeks to quiet title to real property ("Property") located in Calaveras County.

As has been hashed out in multiple rulings by this Court, on or about September 5, 1984, the Gun Club entered into a Land Swap Agreement ("Agreement") with Lucy Tryon, Thomas Tryon, John Tryon and Mary Tryon. (Complaint ¶ 7.) The Agreement specified that the Gun Club was "in the process of purchasing property called the Tracy Quartz Mine, identified as Parcels B, D, and E, on Exhibit A of the Agreement. (Complaint, Ex. B.) The Agreement also specified that the Tryons were the owners of other property identified on that exhibit as Parcels A and C. (*Ibid.*) The Agreement provided that "thereafter and simultaneously" with Gun Club's purchase of the Tracy Quartz Mine, Gun Club would deed Parcels D and E to the Tryons and that the Tryons would deed Parcels A and C to Gun Club. The Agreement further provided that "any rights" either side has in the property deeded to the other side "are hereby extinguished" and that the Agreement was binding on heirs and successors. (*Ibid.*) The Agreement stated that the Tryons would be allowed to continue using Parcels A and C for various purposes, including cattle grazing.

On or about June 12, 1987, Gun Club recorded a Quitclaim Deed granting title to the Tracy Quartz Mine to Gun Club. (Complaint ¶ 10.) Apparently, the boundaries of the various parcels as identified in the Agreement and the boundaries shown on the Official Records differed slightly. (Complaint ¶ 11.) Because of this discrepancy, a lot line adjustment was needed before the grant deeds swapping the various parcels could be